

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

LAURA HERNANDEZ,

Petitioner

VS.

JOSE EDGARDO LOPEZ ZARZA,

Respondent

) Case Number: FDI-24-800723

) Hearing Date: May 7, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF VISITATION

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Laura Hernandez (Mother) and Jose Edgardo Lopez Zarza (Father) were married on 5/29/2019 and separated on or about 8/3/2024. The parties have one minor child together, Sebastian (DOB 9/2/2020, age 5). A Stipulation and Order filed 12/10/2024 provides that the parties shall have joint legal custody and that Mother shall have sole physical custody. The schedule is as follows: Father shall alternate between two schedules. Week 1 - Father shall have every other Saturday at 9am to Sunday at 7pm; Week 2 – Father shall have every other Sunday at 9am to Monday morning drop off at school. If Father is not able to follow the schedule due to his work schedule, the order requires the parties to identify other times in the week to assure parenting time for Father.
- 2) On 2/11/2026, Mother filed a request for modification of the 12/10/2024 order and seeks sole legal and physical custody. She states that while the order anticipated that the parties would agree on schedule adjustments due to Father’s work, that arrangement “has proven unworkable and destabilizing for Sebastian.” Mother states that Father does not honor the requirement of mutual

1 agreement and repeatedly asserts he has the right to see Sebastian whenever he wants, regardless
2 of the schedule or Sebastian's needs. She states that Father has been hostile towards school staff,
3 repeatedly calling Sebastian's teacher and asking whether Sebastian is at school and who is taking
4 him to school. She states that Sebastian says that Father frequently scolds and punishes him, and
5 that on at least one occasion, Father spanked Sebastian with enough force to leave a visible
6 bruise. Mother states that based on Father's past violence towards her and his hostile conduct
7 towards her and Sebastian during exchanges, she is concerned about Sebastian's emotional and
8 physical safety while in Father's care. She proposes that Father have parenting time every other
9 weekend from Saturday at 10am to Monday, school drop-off. She wishes to have the parties
10 communicate through an app like Our Family Wizard. During the weeks when Father does not
11 have weekend parenting time, she wishes for Father to have parenting time on Monday after
12 school to Wednesday morning drop off. She also asks that the parent beginning their custodial
13 time be responsible for transportation.

14 3) Father did not file a response to the request.

15 4) The parties attended mediation and did not reach an agreement. Mother asked for the same
16 parenting time for Father that she asked for in her request. Father requested that he be permitted
17 to give one week's notice for visits and for Mother to do the same if she would like Sebastian to
18 be in his care.

19 **B. Findings and Orders**

20 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
21 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
22 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
23 child is the United States.

24 2) The Court finds it is in the minor child Sebastian's best interest to maintain the current order for
25 joint legal custody and for Father to have parenting time as follows: Father shall alternate
26 between two schedules. Week 1 - Father shall have Saturday at 10am to Monday morning drop
27 off at school (or 9am if school is not in session); Week 2 – Father shall have every other Sunday
28 at 9am to Monday morning drop off at school (or 9am if school is not in session). The party
29 beginning their custodial time shall be responsible for transportation of Sebastian.

- 1 3) The Court finds that the rescheduling of visits based on Father's work schedule is not in
2 Sebastian's best interest at this time. Therefore, if Father is unable to care for Sebastian during his
3 regularly scheduled parenting time, there will be no makeup time for him unless the parties agree
4 in writing to makeup dates and times (a text message or a message through Our Family Wizard or
5 similar app qualifies as a written agreement).
- 6 4) The parties shall upload the Our Family Wizard or Talking Parents or similar app and use that
7 communication method to discuss matters relating to Sebastian. All communication between the
8 parties shall be peaceful and respectful and only about the minor child.
- 9 5) The parties shall not use corporal punishment to discipline Sebastian.
- 10 6) All other orders not in conflict with these orders shall remain in full force and effect.
- 11 7) The Court will prepare the Findings and Order After Hearing.